

An action for quiet title seeks "to establish title against adverse claims to real or personal property or any interest therein." (CCP, § 760.020, subd. (a).) In an action for quiet title, Plaintiff must plead (1) "[a] description of the property that is the subject of the action," specifically the location of tangible personal property and the legal description and street address or common designation of real property, (2) "[t]he title of the plaintiff as to which a determination under this chapter is sought and the basis of the title," (3) "[t]he adverse claims to the title of the plaintiff against which a determination is sought," (4) "[t]he date as of which the determination is sought," and (5) "[a] prayer for the determination of the title of the plaintiff against the adverse claims." (CCP § 761.020.)

Tender is generally required for quiet title claims. (*Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 86-87; *Sierra-Bay Federal Land Bank Association v. Superior Court* (1991) 227 Cal.App.3d 318, 337 [finding a debtor must make a tender or otherwise offer to pay his debt to quiet title].)

Defendants argue the quiet title claim fails for the following reasons. First, because legal title vested in U.S. Bank upon recordation of the Trustee's Deed Upon Sale on February 17, 2026. A properly conducted nonjudicial foreclosure sale is a final adjudication of borrower-lender rights, and the Trustee's Deed Upon Sale conveys title free and clear of the trustor's interest. (*Arnolds Management Corp. v. Eischen* (1984) 158 Cal.App.3d 575, 578-579; *Melendrez v. D & I Investment, Inc.* (2005) 127 Cal.App.4th 1238, 1249.) Plaintiff therefore cannot allege superior record title. Second, because a mortgagor cannot quiet title against the mortgagee without paying the debt secured. (*Shimpones v. Stickney* (1934) 219 Cal. 637, 649.) Third, the complaint does not satisfy Code of Civil Procedure section 761.020 because it does not adequately plead the basis of plaintiff's title, the specific adverse claims at issue, or the date as of which title is sought.

At a minimum, Plaintiff fails to adequately allege tender or otherwise offer to pay the debt. Instead, Plaintiff alleges he "has the ability to tender and is willing to tender an outstanding amount subject to equitable damages suffered by Plaintiff because of Defendants' misconduct." (Compl. ¶ 23.) To maintain this cause action, Plaintiff is required to allege an unconditional offer of performance of his obligations under the Note, with the ability and willingness to perform. (*Abdallah v. United Savings Bank* (1996) 43 Cal.App.4th 1101, 1109; see also *Karlsen v. American Savings & Loan Assn.* (1971) 15 Cal.App.3d 112, 117.)

The demurrer to the eighth cause of action is **sustained with leave to amend**.

Disposition

The demurrer of Defendants SN Servicing Corporation and U.S. Bank Trust National Association as Trustee of LB-Igloo Series VI Trust to the complaint of Plaintiff Abraham Mohamed Yaseen Homran is **sustained without leave to amend** as to the Fifth Cause of Action (Declaratory Relief), and **sustained with leave to amend** as to the First, Second, Third, Fourth, Sixth, Seventh, and Eighth Causes of Action.

Defendants shall prepare the order and file and serve notice of entry of order. Plaintiff has thirty days from notice of entry of order in which to amend the complaint. If Plaintiff fails to amend within to time permitted by this order, defendants may move to dismiss the complaint pursuant to Code of Civil Procedure section 581(f)(2).

21. 9:00 AM CASE NUMBER: C26-00948
CASE NAME: ABRAHIM YASEEN HOMRAN VS. SN SERVICING CORPORATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL AS TO ABRIHIM MOHAMED YASEEN HOMRAN**
FILED BY: YASEEN HOMRAN, ABRAHIM MOHAMED
TENTATIVE RULING:

The motion of Jason W. Estavillo and Estavillo Law Group to be relieved as counsel for Plaintiff Abraham Mohamed Yaseen Homran is **granted**. Counsel is ordered to: (1) file an Amended Order Granting Attorney's Motion to Be Relieved as Counsel-Civil (Judicial Council Form MC-053) with all updated future hearing dates; (2) serve the Order on Plaintiff; and (3) file proof of service with the Court. Counsel will be relieved upon filing the proof of service.

22. 9:00 AM CASE NUMBER: C26-01042
CASE NAME: RUTH ARCEGA CALDERON VS. FCA US LLC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: FCA US LLC
TENTATIVE RULING:

Introduction

Before the Court is Defendant FCA US LLC's ("FCA" or "Defendant") Demurrer to Plaintiff Ruth Arcega and Gustavo Araoz's Complaint ("Complaint") which was filed on March 25, 2026. The Demurrer challenges the sixth cause of action for Fraudulent Concealment.

For the reasons explained below, Defendant FCA US LLC's **Demurrer to Plaintiffs' sixth cause of action for Fraudulent Concealment is overruled.**

Meet and Confer Requirement

Defendant satisfies its meet and confer requirements in detailing its efforts in reaching out and speaking to Plaintiff's counsel via telephone on April 14, 2026, but the parties were unable to resolve the outstanding issues. (Gahan Decl. ¶¶ 2.)

Factual Allegations

On March 25, 2026, Plaintiff initiated this action asserting five causes of action against FCA, four under the Song-Beverly Consumer Warranty Act ("Act") for breach of express and implied warranty, and another cause of action for fraudulent inducement – concealment.

The Complaint alleges that on February 13, 2023, Plaintiff entered into a warranty contract with Defendant FCA regarding a 2022 Jeep Grand Cherokee (i.e. "Subject Vehicle") (Compl. ¶ 7), and that "[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to, transmission defects, electrical defects; among other defects and non-conformities." (Id., ¶ 12.) There are no allegations in the Complaint that Plaintiff contracted directly with FCA nor had any direct dealings with FCA when they purchased the vehicle.

The Complaint alleges that "Plaintiffs discovered Defendants' wrongful conduct alleged herein October 22, 2025, when they requested a buyback and/or restitution of the Subject Vehicle from